

RIGHT OF ENTRY AGREEMENT

This Agreement is made this 19th day of March, 2025, between the Northeast Ohio Regional Sewer District (“District”), a regional sewer district organized and existing as a political subdivision of the State of Ohio under Chapter 6119 of the Ohio Revised Code, acting pursuant to Resolution No. 153-16, adopted by its Board of Trustees on May 19, 2016, and Brecksville/Broadview Heights City School District (“Owner”).

WHEREAS, the Owner owns the real property located at 5122-5498 HARRIS ROAD, Broadview Heights, Ohio, and known as Cuyahoga County Permanent Parcel Number 58325002 (“Property”); and

WHEREAS, the District and/or its contractor/agent desires to enter the Property for the purposes of collecting fish and macroinvertebrates as necessary for the completion of a wildlife survey, and the Owner desires to permit the District to enter the Property for said purpose;

NOW, THEREFORE, in consideration of the terms and conditions herein stated, District and Owner agree as follows:

1. Owner hereby grants the District, its employees, agents, and contractor, the right of entry and the right to perform said wildlife survey on the Property (“Project”).
2. This Agreement is temporary. It shall commence on the date listed above and shall expire automatically when the District deems that the Project is completed.
3. The District shall restore the Property to its condition, as nearly as possible, prior to any disturbance that the District is responsible for during the exercise of its rights herein.
4. Owner acknowledges and grants permission for the removal of wildlife on the Property as is necessary for the Project under the provisions of the District’s Ohio Division of Wild Animal Permit.
5. District is responsible for all costs associated with the Project. Owner acknowledges that no compensation is due Owner for authorizing access onto Owner’s property or as a result of the Project.
6. To the extent authorized by law, the District shall indemnify, defend and hold Owner harmless from and against any claims, loss, costs, legal action, liability, or expense on account of personal injury to any persons or damage to or destruction of property, resulting from the District or its agents’ negligent exercise of the rights herein granted for this Project, excepting only to the extent such claims, costs, damage, injury or expense are not caused by the negligence of the District.

IN WITNESS WHEREOF, the parties hereunto have caused this Agreement to be executed and to become effective on the day and year first above written.

**NORTHEAST OHIO REGIONAL SEWER
DISTRICT**

By: _____
Kyle Dreyfuss-Wells, Chief Executive Officer

PROPERTY OWNER:

By: _____

Print: _____

By: _____

Print: _____

Phone Number & E-mail Address

The legal form and correctness
of the within instrument is hereby
approved.

Eric Luckage, Chief Legal Officer

By: _____
Julie Blair, Assistant General Counsel

Date: _____